HIA / MBA CLAUSE QUICK REFERENCE

Common contract clauses for residential building contracts

Note: This is a general guide only. Always refer to the specific contract edition in use. Clause numbers may vary between editions.

Topic	HIA Reference	MBA Reference	Key Points
Variations	Clause 17	Clause 27	Written notice required before work. Builder must provide cost and time impact.
Extensions of Time	Clause 18	Clause 25	Builder must notify in writing. Includes weather, client delays, authority delays.
Progress Payments	Clause 15	Clause 21	Stage payments as per schedule. Client must pay within timeframe.
Practical Completion	Clause 21	Clause 33	Builder gives notice when works substantially complete.
Defects Liability	Clause 22	Clause 35	Period for builder to rectify defects after PC. Typically 13 weeks.
Termination	Clause 25/26	Clause 39/40	Grounds and process for either party to end the contract.
Disputes	Clause 27	Clause 42	Dispute resolution process. May include mediation, then tribunal/court.
Delay Costs	Clause 18	Clause 26	Builder may claim costs for delays caused by client or authorities.
PC / Provisional Sums	Clause 11	Clause 17	Allowances for items not yet selected. Adjusted on actual cost.
Insurance	Clause 14	Clause 20	Builder must maintain required insurances throughout construction.
Site Conditions	Clause 9	Clause 12	Latent conditions entitle builder to variation for additional work.
Client Access	Clause 20	Clause 32	Client access to site during construction. Safety requirements.
Assignment	Clause 23	Clause 37	Neither party may assign without consent.
Notices	Clause 28	Clause 44	How formal notices must be given (writing, email, delivery).

Important: This guide is for general reference only and does not constitute legal advice. Always read your specific contract in full and seek legal advice if you are unsure about your obligations.